THE STATE
versus
LILIAN CHITANGA
and
SPENCER MABEKA

HIGH COURT OF ZIMBABWE
CHIKOWERO J
HARARE, 20, 21, 23 and 27 January, 10 and 18 February, 5,6,24 and 25 March 2026

Assessors: Mr *Gwatironga*
: Mr *Kuwanda*

Discharge at the close of the State Case

M Manhamo with *T Makiya,* for the state
S Kachere, for the 1st accused
N Chikono, for the 2nd accused

CHIKOWERO J

INTRODUCTION

[1] In a well-reasoned response Mr Manhamo and Mrs Makiya conceded the accused Persons' applications for discharge at the close of the case for the prosecution. The concession is proper.

THE CHARGE

[2] The accused persons' are on trial on a charge of fraud as defined in S 136(a) and (b) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*]. The charge sheet reads, in material part:

> ''In that on a date to the prosecutor unknown but during the period extending from 1 April 2021 to 31 December 2022 and at the City of Harare offices ,Harare Central Business District Lilian Chitanga and Spencer Mabeka or one or both of them acting in association with each

other ,unlawfully and with intent to defraud the City of Harare or realising that there was a real risk or possibility of deceiving the City of Harare ,made a misrepresentation to the City of Harare that their company Brickstone Builders and Contractors Private Limited:
(a) Had been allocated a piece of land on stand numbers 18991 to 19042 under layout plan TP2F2219/3 in the Belvedere Ridge View area measuring 14, 4354 hectares by the Ministry of Local Government and Public Works.
(b) That they had the authority to occupy and develop that piece of land.
Whereas in truth and actual fact, when Lilian Chitanga and Spencer Mabeka or one or both of them so misrepresented, they knew very well that they had not been allocated the piece of land and that they had not been authorised to occupy and develop the piece of land, thereby causing potential financial prejudice of US $1.5 million to the City of Harare''.

THE SUMMARY OF THE FACTS ALLEGED BY THE PROSECUTION

[3] The accused persons are directors of a company called Brickstone Builders and Contractors Private Limited.

[4] In May 2002 the City of Harare approved the subdivision of a portion of land situate in
Belvedere Ridge View, Harare into 52 residential stands under layout plan number TP2F2219/3
but the plan has not been implemented.

[5] In 2021 and in pursuit of the plan to defraud the City of Harare of its land mentioned in the preceding paragraph, the accused persons working in association with each other and well knowing that they were not allocated the said piece of land by the City of Harare and that they had no authority to occupy and develop that piece of land proceeded to forge a distribution letter for approval of layout plan number TP2F2291/3 dated 20 April 2021 and an offer letter for land under layout Plan number TP2F2219/3 dated 22 April 2021 both purportedly authored and signed by Nathan Magadzire(the Principal Director of Physical Planning in the Ministry of Local Government and Public Works).The accused persons proceeded to forge another offer letter offering Brickstone Builders and Contractors Private Limited 14.4354 hectares of land on stand numbers 18991 to 19042 under layout Plan number TP2F2219/3 dated 15 December 2022 purportedly authored and signed by Sibusiso Sithole (The Director of Housing and Community Services in the City of Harare)

[6] The distribution letter for approval of layout Plan number TP2F2291/3 dated 20 April 2021 and an offer letter for land under Layout Plan TP2F2219/3 dated 22 April 2021

purportedly authored and signed by Nathan Magadzire and the offer letter dated 15 December 2022 purportedly authored and signed by Sibusiso Sithole were all referred to the Zimbabwe Republic Police's Questioned Document Examiner to establish whether it was Nathan Magadzire and Sibusiso Sithole who had signed these documents. The Questioned Document Examiner established that the signatures on those documents were not Magadzire and Sithole's, hence his conclusion that the documents were forged.

[7] Meanwhile, armed with the three forged documents the accused persons had already proceeded to invade the City of Harare's land in question and engaged Chacco Holdings Private Limited to carry out land development on the 52 residential stands each of which measured
about 2000 square metres. With the intention to deceive innocent land seekers they advertised the illegally developed stands for sale through a website. About 45 innocent land seekers purchased the stands from the accused persons at prices ranging from US$25 000 to US $40 000 each.
The accused persons, as the sellers, signed lease agreements and offer letters in favour of the purchasers.

[8] The Purchasers erected houses on the stands. The City of Harare, having realised that houses had been illegally constructed on its land, demolished those illegal structures.

[9] The City of Harare's Valuations Department established that stand numbers 18991 to 19042 Belvedere-Ridge View, Harare (under either Brickstone Builders and Contractors Private Limited or its developer, namely Chacco Holdings Private Limited) do not exist in the Council system for billing purposes.

[10] As a result of the accused persons' illegal invasion of Council land, City of Harare potentially stood to lose 52 residential stands.

SUMMARY OF THE DEFENCE OUTLINES

[11] The circumstances of this case justify that we record but without discussing (because we cannot do otherwise as the defence outlines are not relevant material in an application for

discharge) the summaries of the defence outlines of the accused persons. This lends clarity to our reasons for discharging the accused persons at the close of the state case.

[12] The first accused averred that he will testify that when Brickstone Builders and Contractors Private Limited applied for the piece of land in question on 8 January 2002 she had not yet become a director of the said company. The 8 January 2002 act of the director(s) Of the company cannot be attributed to her.

[13] She averred that she will tell the court that she did not forge the three documents already
mentioned in this judgement.

[14] She further averred that she will testify that she did not make any misrepresentations to
anybody, the City of Harare included.

[15] Finally, the first accused averred that she will state that no fraudulent documents were recovered from her.

[16] As for the second accused he too averred that he would deny making any misrepresentations to anybody concerning the ownership of the piece of land in question.

[17] He averred that he will testify that he neither forged, produced nor uttered the forged documents to anyone.

[18] Further, that his evidence will be that no forged documents were recovered from him. He will testify that he does not know how same were recovered and from whom.

[19] He averred that he will testify that all that happened was that, together with Kudakwashe Mnangagwa and Enison Hwingwiri, the second accused was appointed a director of Brickstone Builders and Contractors Private Limited to work on a project on a piece of land

that the first accused said her husband had acquired before his decease.

COMMON CAUSE FACTS

[20] The City of Harare owns the piece of land depicted in Layout Plan number TP2F2219/3 relating to stand numbers 18991 to 19042 in Belvedere Ridgeview, Harare measuring 14. 4354 hectares.

[21] When the City of Harare discovered that this land had been illegally occupied it demolished the houses that had been erected thereon.

[22] Brickstone Builders and Contractors Private Limited filed and lost an application in the High Court at Harare seeking to interdict the City Of Harare from demolishing the houses that we now know.

[23] Thereafter, the City of Harare went on to regularize the illegal occupation by allocating some of the stands to the accused persons as well as those persons who had purchased the same from Brickstone Builders and Contractors Private Limited.

ISSUES FOR DETERMINATION

[24] Whether the state has established, on a *prima facie* basis, that the accused persons or one or both of them acting in association with each other made a misrepresentation to the City of Harare that Brickstone Builders and Contractors Private Limited had been allocated a piece of land on stand numbers 18991 to 19042 under layout plan TP2F2219 in Belvedere Ridgeview, Harare measuring 14.4354 hectares by the Ministry of Local Government and Public Works.

[25] Whether the state has established, again on a prima facie basis, that the accused persons or one or both of them acting in association with each other made a misrepresentation

to the City of Harare that Brickstone Builders and Contractors Private Limited had the authority to occupy and develop the piece of land in question.

[26] As regards the rest of the requirements of the crime charged and issues relative to any permissible verdict, it all hinges on a determination of the issues set out at paragraphs 24 and 25 of this judgement.

SUMMARY OF THE EVIDENCE LED BY THE STATE

[26] The state led evidence from nine witnesses and closed its case. The witnesses produced
by the State were Addmore Nhekairo, Nathan Magadzire, and Kudakwashe Mnangagwa, Samuel Nyabezi, Sibusiso Sithole, Life Manyenga, Enison Hwingwiri, Robson Chinamasa Kuraushe Madzivanyika.

[27] Nhekairo is employed by the City of Harare as the Director of Housing and Community
Services. His evidence, summarised, is as follows:

[28] His responsibilities include the allocation of both developed and undeveloped stands on behalf of City of Harare. Such stands would have been created by the City's town planning
department.

[29] In 2023 Council land in Belvedere Ridgeview, Harare was illegally occupied. Council demolished the illegal structures that had been erected thereon. Such structures were houses. An unsuccessful application was made to the High Court at Harare by Brickstone Builders and
Contractors Private Limited to interdict Council from carrying out the demolitions. It was at a pre hearing discussion that Nhekairo met the second accused for the first time. In filing its application for the interdict, Brickstone Builders and Contractors Private Limited had attached
a letter purportedly authored by Nathan Magadzire of the Ministry of Local Government and Public Works allocating the land in question to Brickstone Builders and Contractors Private

Limited. City of Harare allocates Council land while the Ministry of Local Government and Public Works allocates State land. When Council enquired of the Ministry on circumstances surrounding its allocation of the Council land in question, Magadzire denied writing and signing the letter attributed to him. He indicated that it was forged.

[30] After losing the application for an interdict at the High Court Hwingwiri led two directors of Brickstone Builders and Contractors Private Limited in approaching the City of Harare for regularization of the illegal occupation of the council land. The result of that engagement was that council ended up allocating twenty-seven stands at Belvedere Ridgeview, Harare to Brickstone Builders and Contractors Private Limited.

[31] Nhekairo testified that he did not interact with the first accused at all. Further, that no prejudice, potential or otherwise, was suffered by Council. He does not know who filed a police report. Under cross-examination, he confirmed that no misrepresentation was made to City of Harare.

[32] Magadzire is the Chief Town Planning Technician in the Ministry of Local Government and Public Works' Department of Spatial Planning and Development. His duties include the preparation of layout plans on State land, assessment of layout plans submitted to the Ministry by local authorities, maintenance of a register of approved layout plans in the Ministry and advising local authorities on development control. Layout plans submitted to the Ministry by local authority are sent back to the local authority concerned for implementation only if they have been approved by the Minister of Local Government and Public Works.

[33] The witness denied preparing and signing the letter dated 20 April 2021. That letter bears his particulars. The letter was addressed to the City of Harare's Director of Works approving layout plan number TP2F2219/3. His office never received any request from Council in respect of anything to do with that piece of land. The signature on the document was not his and the file reference on the letter was for Warren Park and not Belvedere. The Ministry checked with City of Harare and did not find such a letter on file. Further, he denied knowledge of the letter dated 22 April 2021 addressed to the City of Harare's Director of Works by one N Magadzire. We were told that the letter in question is headed "Allocation of

Proposed Subdivision of Salisbury Township" and that it states that the land in question had been allocated to Brickstone Builders and Contractors Private Limited under Layout Plan number TP2F2219/3. He denied being the author of that letter and was clear that the Ministry of Local Government and Public Works does not have the mandate to allocate land owned by Council, particularly to building contractors.

[34] He does not know the author of the letters of 20 April 2021 and 21 April 2021. He knows nothing of the alleged misrepresentations set out in the charge sheet.

[35] Mnangagwa is one of the directors of Brickstone Builders and Contractors Private Limited. He was invited to take up that post by the first accused in 2021. He obliged. Decisions of the company were primarily made by the first accused, with the second accused endorsing them. No resolutions of the board of directors were made.

[36] He gathered that the accused persons were selling council land, and without any paperwork, when Council carried out the first demolition of houses erected in Belvedere Ridgeview, Harare. The genesis of his problems with the accused persons arose from the fact that he reprimanded them from continuing sales of council land even after the first Council demolition of the illegal structures. He is one of those persons who filed a report with the Zimbabwe Anti-Corruption Commission. He did this because his name was being associated with the illegal land sales.

[37] Nyabezi is the City of Harare's Chief Planner. He also is the City's Acting Director of Urban Planning. He presides over the Subdivision of Council land, private land and at times state land. Among other duties, he handles town planning applications and advises council on town planning matters.

[38] Regarding layout plan number TP2F2219/3, the same was approved by Council in 2002 but remained unimplemented.

[39] In or about 2022 the land covered by the Layout Plan mentioned in the preceding paragraph was illegally occupied. The High Court at Harare granted an eviction order in favour of Council. Thereafter, Council executed the order by, among other things, carrying

out two demolition exercises of the houses that had been erected on the piece of land in question.

[40] That piece of land belongs to Council. The witness does not know who filed the police report which resulted in the trial of the accused persons.

[41] Critically, the witness is not aware of the alleged misrepresentation made to the City of Harare by the accused persons.

[42] Sithole was the City of Harare's District Officer from 1999 up to his retirement in 2023. He was the Acting Director of Housing and Community Services from 2020 to 2023. During that period, he never allocated Council land to anybody. He denied writing the letter of 15 December 2022 addressed to Brickstone Builders and Contractors Private Limited wherein the Director of Corporate Services was offering 14.4354 hectares of land situate in Belvedere Ridgeview, Harare to Brickstone Builders and Contractors Private Limited. He observed that the letter does not make any reference to a Council resolution as authority for the allocation. Further, there being no department of Corporate Services within City of Harare it follows that there could be no director heading the same. In short, his evidence is that the letter attributed to him is a forged document.

[43] The witness does not know the accused persons.

[44] Chinamasa had the misfortune of having his two houses, built on the land in question, demolished by Council. He is one of those persons who had purchased a stand on the land in question. Otherwise, he has no knowledge of the allegations levelled against the accused persons.

[45] Manyenga narrated how he purchased two stands from Brickstone Builders and Contractors Private Limited. The accused, in their capacities as directors of the seller, signed both agreements of sale. He was a victim of the Council demolitions of 2023. He did not benefit from the Council exercise of regularisation of the illegal occupation. He too filed a report with the Zimbabwe Anti-Corruption Commission.

[46] Hwingiri was shown a layout plan by the first accused. This was after the death of the latter's spouse. She claimed to have stumbled upon it among her late husband's things. She wanted the witness to assist her to secure purchasers for the piece of land depicted in the layout plan. The second accused, Misheck Mubaiwa and Charles Makari were appointed as directors of Brickstone Builders and Contractors Private Limited for the same purpose. Makari and Mubaiwa were subsequently removed from the directorship and replaced by Mnangagwa and Hwingiri.

[47] Chacco Holdings Private Limited was engaged to service the piece of land.

[48] The witness could not perform his duties as director for sometime because of ill health. Upon his recovery, he discovered that Mnangagwa and himself were being sidelined from the operations of the company. The other directors had parcelled out some stands among themselves. What he got was a single stand.

[49] The identity of the person who filed a report to the Zimbabwe Anti-Corruption Commission is to him unknown. He was never in custody of the forged documents allegedly presented to the City of Harare.

[50] Madzivanyika is the forensic scientist who examined the questioned documents and concluded that they were forged. The said documents were not produced at the trial. Nothing turns on that.

DISPOSITION

[51] We discharge the accused persons because there is no evidence to prove the essential elements of the crime of fraud or any other offence which is a permissible verdict on a charge of fraud.
See *AG* v *Bvuma and Anor* 1987(2) ZLR 96(S).

[52] The essential elements of the crime of fraud are trite. See *S* v *Nyambuya and Anor* HH

308/16, *Prosecutor General* v *Intratrek Zimbabwe (Pvt) Ltd and Ors* 2019 (3) ZLR 106(S)
and
Tangwena and *Anor* v *Prosecutor General* SC 75/21.

[53] It is correct, as pointed out by the State in its written response to the applications for discharge that the first accused set off the chain of events that ultimately led to Brickstone Builders and Contractors Private Limited selling Council land to innocent land seekers.

[54] The evidence adduced, so far, particularly through Hwingiri, establishes that the first accused advised her fellow directors, who included the second accused, that her late husband had some interest in a piece of land. She invited these other directors to collaborate with her in a project to sell this piece of land in the form of individual stands.

[55] The forged documents, all of which were not produced at the trial, were not recovered from the accused persons by the Zimbabwe Anti-Corruption Commission investigators. The evidence placed before us is that none of the accused persons produced the documents to the State witnesses. The prosecution opened and closed its case without leading evidence regarding where and from whom the forged documents were recovered from.

[56] Nhekairo testified that there was an illegal occupation of Council land which resulted in the demolition of the structures that had been erected thereon. He was categoric that no misrepresentation was made by either of the accused to the City of Harare. Moreover, he testified that the City of Harare did not suffer any prejudice. Nhekairo said the forged documents were not presented to the City of Harare and that, therefore, the latter did not act on them to its prejudice. Here, the witness was speaking to the absence of evidence that the accused persons intended to deceive the City of Harare or the realisation by the accused persons that there was a real risk or possibility of deceiving the City of Harare. Since there was no evidence that the accused persons made the alleged misrepresentation to the City of Harare to begin with, it follows that the State could not (and indeed did not) establish that the accused persons intended to cause City of Harare to act upon the alleged misrepresentation to its prejudice or realised that there was a real risk or possibility that the City of Harare may act upon the alleged misrepresentation to its prejudice.

[57] All told, this is a classic case where the State, at the end of its case, failed to produce evidence establishing all the essential elements of the charge of fraud. In the same vein there is no evidence upon which this court may convict on any permissible verdict.

[58] The first accused is discharged at the close of the case for the prosecution.

[59] The second accused is discharged at the close of the case for the prosecution.

VERDICT : The first Accused is found Not Guilty and is Acquitted.
: The second Accused is found Not Guilty and is Acquitted.

CHIKOWERO J: ……

The National Prosecuting Authority, The State's legal practitioners
Kachere Legal Practitioners, first accused's legal practitioners
Moyo Chikono and Gumiro, second accused's legal practitioners